

M/s Ganga Devi Pyare Lal Cold Storage Pvt. Ltd. v. State of U.P.

Allahabad High Court · Division Bench · 8 March 2017 · Writ-C No. 10486 of 2017 · **Writ dismissed; petitioner relegated to Clause 6.14 instalments.**

HEADNOTE

The Allahabad High Court declined to entertain a writ seeking quashing of an electricity recovery notice and leave to pay arrears in instalments, holding that Clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005 supplies a departmental remedy for fixing instalments.

FACTUAL SUMMARY

A private cold-storage company challenged a 16 February 2017 recovery notice issued by the Executive Engineer for Rs 48,70,962 plus collection charges. In an earlier writ (Writ C No. 69280 of 2015) it had obtained a direction that, on deposit of Rs 10 lakh, its electricity connection be restored after completion of formalities. Supply was later disconnected again for unpaid bills. The petitioner then asked the High Court to quash the recovery and permit deposit of the outstanding amount in instalments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalments of electricity arrears

HOLDING

A writ seeking quashing of an electricity recovery notice and permission to pay arrears in instalments is not entertained when Clause 6.14 of the Electricity Supply Code, 2005 is available before the department for fixing instalments. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14

The Allahabad High Court declined to entertain a writ seeking quashing of an electricity recovery notice and leave to pay arrears in instalments, holding that Clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005 supplies a departmental remedy for fixing instalments. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE 16 FEBRUARY 2017 RECOVERY NOTICE

Petition declined without examining the demand; only the Clause 6.14 instalment route was pointed out. ¶ 1